Harikesh Singh vs State Of U.P. on 26 April, 2019

Equivalent citations: AIRONLINE 2019 ALL 874

Author: Ram Krishna Gautam

Bench: Ram Krishna Gautam

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HIGH COURT OF JUDICATURE AT ALLAHABAD


A.F.R.

Reserved on: 03.04.2019

Delivered on: 26.04.2019

Case :- CRIMINAL APPEAL No. - 6061 of 2006

Appellant :- Harikesh Singh

Respondent :- State Of U.P.

Counsel for Appellant :- Dr. Arun Srivastava,R.P.Tiwari

Counsel for Respondent :- Govt. Advocate

Hon'ble Ram Krishna Gautam,J.
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1. Heard Sri Dr. Arun Srivastava, learned counsel for appellant and learned A.G.A. for State.

2. This appeal under Section 374(2) Cr.P.C. has been filed by appellant Harikesh Singh against judgment of conviction and order of sentence dated 07.08.2006, passed by Additional Sessions Judge Vth, Pilibhit in Sessions Trial No. 84 of 2005; State of U.P. Vs. Harikesh and others, arising out of Case Crime No. 428 of 2004, under Sections 498-A, 304-B, 201 I.P.C. and 4 of Dowry Prohibition Act, P.S. Neuria, District Pilibhit, whereby appellant has been convicted and sentenced with two years' rigorous imprisonment and fine of Rs.2,000/- and in default of payment of fine three months' additional rigorous imprisonment for offence punishable under Section 498-A I.P.C., ten years' rigorous imprisonment for offence punishable under Section 304-B I.P.C., two years' rigorous imprisonment and fine of Rs.1,000/- and in default of payment fine two months' additional rigorous imprisonment under Section 201 I.P.C. and one year rigorous imprisonment and fine of

Rs.2,000/- and in default three months' additional rigorous imprisonment under Section 4 Dowry Prohibition Act with this contention that trial court failed to appreciate the facts of law placed before it on record and sentences were too severe, hence this appeal with a prayer for setting aside impugned judgment of conviction and sentences made therein.

3. The case of prosecution surfaced on record is that first information report of above Case Crime No. 428 of 2004, under Sections 304-B, 201, 498-A I.P.C. read with Section 3/4 Dowry Prohibition Act was got registered at Police Station Neuria, District Pilibhit on 11.09.2004 at 19.30 P.M. on the report of Smt. Ramlali, W/o Swami Nath, R/o Jay Nagar No. 1, P.S. Rudrapur, District Udham Singh Nagar, Uttranchal against husband Harikesh Singh, jeth Balkaran Singh, mother-in-law Budhiya and father-in-law Ram Padarath Singh, all R/o Neuria Colony, Nai Basti, Pakadia, P.S. Neuria, District Pilibhit with contention that informant's daughter Rooprani was married with Harikesh Singh, S/o Ram Padarath, five years back. Dowry, as per capacity, was given in it, but husband and in-laws of deceased-daughter were not satisfied with the dowry and they were demanding additional dowry of Rs.25,000/- and due to non-fulfillment of same, she was being subjected to cruelty. Rooprani was blessed with a female baby, one month before. Rooprani was subjected to cruelty regarding above dowry by husband Harikesh Singh, jeth Balkaran Singh, mother-in-law Budhiya and father-in-law Ram Padarath Singh. She was killed by them and her cremation was performed without informing to anyone. When this information was received, informant went to her daughter's in-laws house on 30.07.2004, where she asked about this hidden cremation of her daughter. She was abused and assaulted by deceased's in-laws. She went at Police Station for getting the case reported, but was of no avail, hence it was sent through registered post on 03.08.2004 to Superintendent of Police, Pilibhit, but no action was taken by Police Station, Pilibhit, hence this application before Magistrate was filed under Section 156(3) Cr.P.C. for getting the case registered and in compliance of order of Chief Judicial Magistrate, Pilibhit, this case crime number was got registered. After investigation, charge sheet against accused Harikesh Singh, Balkaran Singh, Budhiya and Ram Padarath Singh was submitted for offence punishable under Sections 304-B, 201, 498-A I.P.C. read with Section 3/4 Dowry Prohibition Act. Magistrate took cognizance over it. As offence of dowry death was exclusively triable by Court of Sessions, hence court of Chief Judicial Magistrate, Pilibhit, vide order dated 02.03.2005, committed file to Court of Sessions, which was transferred to Court of Additional Sessions Judge, who after hearing learned Government counsel and learned counsel for defence, framed charge on 16.06.2005 against Harikesh Singh, Balkaran Singh, Budhiya and Ram Padarath Singh as follows:-

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2. That, you all committed cruelty towards informant's daughter within seven years of her marriage for bringing less dowry and you all were demanding additional dowry of Rs.25,000/- from her and for it committed dowry death, thereby committed offence punishable under Section 304-B I.P.C., which is within cognizance of above Court.

3. That one month before the above date of dowry death, at the aforesaid place, you after commission of dowry death of Rooprani, got her dead body cremated without informing informant with a view to elope the evidence of offence, thereby committed offence punishable under Section 201 I.P.C., which is within cognizance of above Court.

4. That you prior to 21.08.2004 demanded additional dowry of Rs.25,000/- cash from deceased Rooprani and thereby committed offence punishable under Section 3/4 Dowry Prohibition Act, which is within cognizance of above Court."

(Translated by the Court itself)

4. Charge was read over to accused person, who pleaded not guilty and claimed for trial.

5. Prosecution examined PW-1 Ramlali, informant, who has proved Ext.Ka-3 as well as application sent through registered post to Superintendent of Police, Pilibhit along with receipt of posting Ext.Ka-1 and Ext.Ka-2, PW-2 Swami Nath, PW-3 Shyam Wati, PW-4 Anil Kumar Pandey, Investigating Officer, Circle Officer Bisalpur.

6. With a view to have explanation, if any, over the incriminating evidence, led by prosecution, as well as version of defence, each of accused persons were examined under Section 313 Cr.P.C., in which they replied themselves to be innocent and falsely implicated in this case crime number. Husband Harikesh Singh said that Rooprani died, owning to Diarrhea. Her mother Ramlali (informant) and father came and participated in her last rituals, subsequently, they demanded money and failing it, this false accusation was got lodged. This too was said by other accused persons.

7. Defence examined DW-1 Ashok Kumar, Stenographer of office of Chief Medical Officer, Pilibhit for establishing medico-legal report regarding age of Km. Puja (Ext.Kha-1).

8. After hearing learned public prosecutor and learned counsel for defence, trial court passed impugned judgment of conviction of accused Harikesh Singh for offence punishable under Sections 498-A, 304-B, 201 I.P.C. read with Section 4 Dowry Prohibition Act and judgment of acquittal for Balkaran Singh, Smt. Kamla Devi.

9. The trial of father-in-law Ram Padarath of deceased stood abated owing to his death during trial.

10. After hearing learned public prosecutor as well as learned counsel for defence over quantum of punishment convict Harikesh Singh was sentenced as above.

11. No appeal by State, against judgment of acquittal of those acquitted accused, was filed.

12. The convict-appellant Harikesh Singh, who was sentenced as above, suffered imprisonment and after suffering awarded imprisonment, he was set at liberty in compliance of order of sentence.

13. Learned counsel for appellant, while arguing over appeal, limited his argument over point of conviction only, because sentences imposed were suffered, hence quantum of punishment and assail regarding same was said to have become infructuous as against husband Harikesh Singh.

14. Section 304B of I.P.C. was inserted by Act No. 43 of 1986 w.e.f. 19.11.1986 that

1. Where the death of a woman is caused by any burns or bodily injury or occurs otherwise than under normal circumstances within seven years of her marriage and it is shown that soon before her death she was subjected to cruelty or harassment by her husband or any relative of her husband for, or in connection with, any demand for dowry, such death shall be called "dowry death", and such husband or relative shall be deemed to have caused her death.

There is an explanation that for the purpose of this sub-section, "dowry" shall have the same meaning as in section 2 of the Dowry Prohibition Act, 1961 (28 of 1961).

2. Whoever commits dowry death shall be punished with imprisonment for a term which shall not be less than seven years but which may extend to imprisonment for life.

15. The Apex Court in Pathan Hussain Basha Vs. State of Andhra Pradesh, AIR 2012 SC 3205 has propounded that if a married woman dies in unnatural circumstances at her matrimonial home within seven years from her marriage and these are allegations of cruelty or harassment upon such married woman for or in connection with demand of dowry by the husband or relatives of the husband, the case would squarely come under "dowry death" and there shall be a presumption against the husband and the relatives.

16. The Apex Court in Satbir Singh Vs. State of Punjab, AIR 2001 SC 2828 has propounded that the prosecution under section 304B of I.P.C. cannot escape from the burden of proof that the harassment to cruelty was related to the demand for dowry and such was caused "soon beore her death". The word "dowry" has to be understood as it is defined in section 2 of the Dowry Prohibition Act,1961. Thus, there are three occasions related to dowry, i.e. before marriage, at the time of marriage and at an unending period. The customary payment in connection with the birth of child or other ceremonies, are not involved within the ambit of "dowry".

17. The Apex Court in many cases has propounded that where the evidence revealed that accused-husband killed deceased-wife for not satisfying his dowry demand but nothing on record to show involvement of co-accused in-laws with the offence committed by the accused, co-accused in-laws are not guilty of offence under sections 304B I.P.C.

18. The Apex Court in Kashmir Kaur Vs. State of Punjab, AIR 2013 SC 1039 has propounded that in a case of trial for dowry death the essential ingredients to attract the provisions of section 304B I.P.C. for establishing offence are (a) that soon before the death of the deceased she was subjected to cruelty and harassment in connection with the demand of dowry, (b) the death of the deceased woman was caused by any burn or bodily injury or some other circumstance, which was not normal, (c) such death occurs within seven years from the date of her marriage, (d) that the victim was subjected to cruelty or harassment by her husband or any relative of her husband, (e) such cruelty or harassment should be for or in connection with demand of dowry, and (f) it should be established that such cruelty and harassment was made soon before her death.

19. The Apex Court in Banshi Lal Vs. Hate of Haryana, AIR 2011 SC 691 has propounded that the court has to analyse the facts and circumstances as leading to death of the victim and decide if there is any proximate connection between the demand of dowry and act of cruelty or harassment and the death. Meaning thereby cruelty or harassment with regard to demand of dowry soon before death is a crucial ingredient to be proved by prosecution before attracting any provisions of section 304B I.P.C.

20. Apex Court in Mustafa Shahdal Shaikh Vs. State of Maharashtra, AIR 2013 SC 851 has propounded that "soon before death" means interval between cruelty and death should not be much. There must be existence of a proximate and live links between the effect or cruelty based on dowry demand and the concerned death. If the alleged incident of cruelty is remote in time and has become stale enough not to disturb the mental equilibrium of the woman concerned, it would be of no consequence.

21. This has again be reiterated by Apex Court in Kaliyaperumal Vs. State of Tamil Nadu, AIR 2003 SC 3828 that the expression 'Soon before her death" used in the substantive section 304B I.P.C. and section 113B of the Evidence Act is present with the idea of proximity text. No definite period has been indicated and the expression "soon before hear death" is not defined. The determination of the period which can come within the term "soon before" is left to be determined by the courts, depending upon facts and circumstances of each case. Suffice, however, to indicate that the expression 'soon before' would normally imply that the interval should not be much between the concerned cruelty or harassment and effect of cruelty based on dowry demand and the concerned death. If alleged incident of cruelty is remote in time and has become stale enough not to disturb mental equilibrium of the woman concerned, it would be of no consequence.

22. Regarding presumption under section 113B of the Evidence Act in this very ruling the Apex Court has propounded that the presumption shall be raised only on proof of the following essentials:-

> 1. The question before the court must be whether the accused has committed the dowry death of a woman.
>
> 2. The woman was subjected to cruelty or harassment by her husband or his relatives.
>
> 3. Such cruelty or harassment was for, or in connection with, any demand for dowry.
>
> 4. Such cruelty or harassment was soon before her death.

23. Though, the Apex Court has visualised that direct ocular testimony is rarely available in dowry death case and in most of such offence direct evidence is hardly available and such cases are usually proved by circumstantial evidence. This section as well as section 113B of the Evidence Act enact a rule of presumption i.e. if death occurs within seven years of marriage in suspicious circumstances. This may be caused by burns or any other bodily injury. Thus, it is obligatory on the part of the prosecution to show that death occurred within seven years of marriage. If the prosecution would fail to establish that death did not occur within seven years of marriage, this section will not apply.

24. Hence the present case is to be scrutinized in view of above settled principle of law and factual evidence proved on record.

25. Apex Court in Anil Rishi Vs. Gurbux Singh; AIR 2006 SC 1971 has propounded that onus to prove a fact is on the person who asserts it under Section 102 of Evidence Act. Initial onus is always on plaintiff to prove his case and if he discharges onus shifts to defendant though burden of proof on the pleading never shifts, it always remains constant. The initial proving of a case in his favour is cast on plaintiff when he fulfills, onus shifts over defendant to adduce rebutting evidence to meet the case made out by plaintiff. Onus may again shifts to plaintiff. This was propounded by Privy Council in Kumbham Lakshmanna & others Vs. Tangirala Venkateswarlu & others; AIR 1949 PC 278. In a criminal trial, the onus is upon prosecution to prove the different ingredient of the offence and unless it discharges that onus it cannot succeed as was propounded by Apex Court in Kali Ram Vs.

State of H.P. AIR 1973 SC 2773. Prosecution is to prove its case beyond all reasonable doubt whereas accused is to prove only till establishing preponderance of probabilities, as propounded in Pratap Vs. State of U.P. AIR 1976 SC 966, but apex court repeatedly particularly in State of Punjab Vs. Bhajan Singh; AIR 1975 SC 258 has propounded that suspicion howsoever strong cannot take place of proof. In appeal the burden is on appellant to prove how the judgment under appeal is wrong? He must show where assessment has gone wrong.

26. In case in hand, first information report was instantly got lodged on 11.09.2004 at 19.30 P.M. upon report of Smt. Ramlali against convict-appellant Harikesh Singh and his family members with specific accusation that marriage of her daughter was performed five years back of the occurrence and there was persistent demand of dowry of Rs.25,000/- coupled with torture regarding it. Her daughter Rooprani was subjected to cruelty for above demand of dowry soon before this occurrence i.e. one month before. Deceased's husband Harikesh Singh and his family members did cruelty regarding demand of dowry and committed her murder, but without giving any information to informant her daughter's last rituals were performed. For this, she had reported to Superintendent of Police, Pilibhit and Ext.Ka-1 has been proved by her with report sent under her thumb impression to Superintendent of Police, mentioning therein the alleged occurrence. This was reported in application moved under Section 156(3) Cr.P.C. before court of Chief Judicial l Magistrate, Pilibhit proved and exhibited as Ext.Ka-3. Magistrate concerned by a judicial order dated 02.09.2004 directed for registration and investigation of this case crime number and this case was got registered in compliance of order of Magistrate, in which charge sheet was filed and thereafter prosecution led its evidence.

27. PW-1 Ramlali informant in her statement recorded on oath has categorically said that her daughter Rooprani was married five years back with Harikesh Singh, accused person in docket of Court, in which dowry as per her capacity was given. The marriage was performed as per Hindu rituals. Since Harikesh Singh (husband) and his family members were not satisfied with the dowry, for which additional demand of dowry of Rs.25,000/- was made, which could not be fulfilled and Rooprani was persistently being tortured. This was complained by Rooprani to her mother. She was blessed with two kids. Both were daughters and this again furiated. Younger one died. Elder one is alive. One and half years before the date of occurrence, this witness went for calling back her daughter Rooprani, but accused persons did not let her go. Rather assured for coming after 15 days. This witness came back. But informant could not manage for Rs.25,000/- and she went to take back her daughter after one month. She came to know about murder of her daughter by accused persons. Her dead body was not shown to her nor any information of same was given to her. When asked for, she was badly abused and for this Ext.Ka-1 was sent to Superintendent of Police, Pilibhit, but of no avail, hence application (Ext.Ka-3) was filed under thumb impression of this witness at the Court of Chief Judicial Magistrate, Pilibhit. All the essentials ingredients of dowry death coupled with offence of cruelty punishable under Section 498-A I.P.C. read with demand of dowry punishable under Section 4 Dowry Prohibition Act were said by her. In her cross-examination she has said that her husband died in an accident, thereafter, she got herself married her daughter and at that time demand of dwory was made, but could not be fulfilled. After marriage, accused persons persistently demanded dowry and cruelty regarding it was being made. Though after this marriage, informant got herself married and this was vehemently argued by learned counsel for appellant that this was

conduct of this witness, who got herself married after marriage of her daughter. But, this is of no force because husband of this witness had died in an accident and after marriage of her daughter she got herself married with someone else. This was not a negative for her testimony. She has categorically said that even after five years of marriage, her daughter was killed. Marriage was performed in amicable circumstances and after first Vidai everything was usual. After three months of marriage informant had gone to house of her daughter, where those accused persons entered into altercation regarding alleged demand of dowry. She was badly abused by them. Though, her daughter was sent with her. Her daughter was taken by her husband, but she was being subjected to cruelty by her husband and she was not permitted to meet her daughter. One month before rather she was asked to be thereat after 15 days and when she went there, she came to know that her daughter was dead and her last rituals were performed without any information to her. Then she got this case registered. Now there is no material contradiction about the fact stated by this witness in her examination-in-chief. Rather no cross-examination was made over this point that present witness PW-1 along with her husband was present in ceremony of last rituals of her daughter, as was said in the statement recorded under Section 313 Cr.P.C. and argued before this Court. It was a specific fact pleaded by accused convict-appellant and this was to be proved by convict-appellant that he had given information to informant regarding death of deceased and they participated in her last rituals but no such cross-examination or cogent suggestive question regarding it is there. This witness is overall a natural witness with natural contradiction and variation in her testimony i.e. having no material contradiction.

28. PW-2 is Swami Nath who is said to have married with informant after the marriage of deceased. Her first husband Ram Singh had died in an accident, thereafter, she married with him and this marriage was after the marriage of Rooprani. Then, he was not a crucial witness regarding demand of dowry at the time of marriage or before the marriage or subsequent to marriage, but he has categorically said that Rooprani died within five years of marriage and she was married with convict-appellant Harikesh Singh. This cruelty with regard to demand of dowry was complained by deceased to her parents. The deceased was killed and her last rituals were performed without giving any information to informant. In his cross-examination a hair split cross-examination is there, but the witness, who himself got married with mother of deceased after marriage of deceased, was of no crucial importance, whereas it was said by learned counsel for convict-appellant that this information of death was given to informant and parents of deceased participated in her last rituals, but no such question in form of suggestive or cross-examination over this point were put to this witness.

29. Shyam Wati PW-3 is a witness of this fact that one and half years ago Rooprani died at her matrimonial house and this death was within five years of marriage. Harikesh is her husband. Rooprani was very often subjected to cruelty by her husband and in-laws. She had complained this cruelty to her mother while this witness was present. Rooprani was sent with her husband one month back and thereafter this untoward incident took place. In cross-examination, there is only a natural variation with no material contradiction. There is no cross-examination on the point that no demand of dowry or cruelty with regard to it was every made to deceased or information of this death was sent to informant and parent of deceased participated in last rituals or deceased died owing to Diarrhea and it was unnatural death. There is no embellishment, contradiction or

exaggeration in the testimony of this witness. Rather testimony of all these three witnesses of fact are in corroboration with each other. They are natural witnesses with natural variation.

30. PW-4 is Investigating Officer Anil Kumar Pandey. He in his testimony has proved investigation made by him. He has formally proved site map prepared under his inspection and being on record numbered as Ext.Ka-4. Medical examination report of Km. Puja, daughter of deceased, was got conducted and she was held to be of seven years with variation of 4-6 months either side. After arresting of accused persons their statements were got recorded. Statements of prosecution witnesses as well as accused were got recorded and after investigation charge sheet Ext.Ka-5 under his handwriting and signature was got filed and the same being on record. Constable Clerk Permanand was posted with him at above police station and he was positively acquainted with handwriting and signature of above witness. The testimony of other witness Permanand regarding preparation of Chick FIR Ext.Ka-6 and General Diary Entry Ext.Ka-7 has been secondarily proved by this witness, who has categorically said that he was entrusted with investigation after five days of registration of case crime number and he concluded investigation as has been said in examination-in-chief. Km. Puja was of seven years of age, but not competent to give statement because of her tender age, hence her statement was not recorded, but site map was got prepared. A suggestive question has been put to this witness that he conducted entire investigation by sitting in his office with no site visit and substantial investigation. This has been answered in negative. Formal proof of investigation has been made by this witness, for which there is no exaggeration or embellishment.

31. CW-1 is Head Constable Chhotey Lal, who in his testimony has secondarily proved the testimony of Siya Ram Rathore, who was posted with him and of whose handwriting he was fully acquainted. Co-accused Ram Padarath died during trial and his death report was submitted by S.I. Siya Ram Rathore.

32. This has been categorically said by accused-appellant in his statement recorded under Section 313 Cr.P.C. that deceased died owing to Diarrhea, but no medical evidence regarding treatment given, if any, or independent witness for proving death owing to Diarrhea has been led by defence. This statement was said by defence, hence they had to prove that it was not an unnatural death, as has been proved by prosecution rather it was natural death as has been said by defence. Hence there is no evidence regarding alleged contention of convict-appellant that deceased Rooprani died owing to Diarrhea and this death was informed to parents of deceased, who came and participated in her last rituals, whereas all three witnesses of fact by their worth believing testimony have proved that they were never informed about this occurrence of death nor last rituals were performed after giving information to informant. Rather accused Harikesh Singh, husband of deceased, did last rituals in hurry without informing informant or to police.

33. Under all above facts and circumstance, overall appreciation of evidence led by prosecution and appreciating the evidence within above settled proposition of law, it is fully established that trial court has rightly convicted accused Harikesh Singh for charges levelled against him. There was no lack in appreciation of evidence by trial Judge.

34. This appeal merits its dismissal and the same is accordingly dismissed.

35. Let a copy of this judgment along with lower court's record be sent back to the court concerned for immediate compliance and necessary action.

Order Date :- 26.04.2019 NS